

25STLC08383 25STLC08383

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STLC08383 Hearing Date: July 2, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Specialist Roofing and

Repair, LLC's Motion for Order Compelling Further Responses to Requests for Production of Documents, Set One; and Request for Monetary Sanctions, is granted. Defendant Zackary Georgian is to serve supplemental responses within 20 days of this order. Also, within 20 days of this order, Defendant Zackary Georgian and counsel of record, Paul S. Marks, Esq., are jointly and severally ordered to pay sanctions of \$1,834.76 to Plaintiff's counsel.

Analysis:

On November 6, 2025, Plaintiff Specialist Roofing and Repair, LLC ("Plaintiff") filed the instant action for breach of contract, promissory estoppel, and common counts against Defendant Zackary Georgian ("Defendant"). Defendant filed a General Denial and a Cross-Complaint on January 20, 2026. The Cross-Complaint seeks damages of at least \$50,000.00. (Cross-Compl., p. 7:16-17.)

On June 1, 2026, Plaintiff filed the instant Motion for Order Compelling Further Responses to Requests for Production of Documents, Set One; and Request for Monetary Sanctions. Defendant filed an opposition on June 18, 2026 and Plaintiff replied on June 25, 2026.

Discussion

Procedural

Requirements

Notice of the

motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) This time is extended based on the manner of service; service by electronic mail extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant served responses to the Request for Production of Documents, Set One, on April 17, 2026, by electronic mail. (Motion, Kim Decl., Exh. B at p. 6.) The instant Motion was timely filed and served 45 days later.

Second, California

Rules of Court Rule 3.1345 requires all motions or responses involving further discovery to include a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, Rule 3.1345, subd. (a).) Alternatively, “the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2031.310, subd. (b)(3).) The Motion is accompanied by a separately filed separate statement.

Finally, the motion must

be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Plaintiff’s counsel sent defense counsel a meet and confer letter on May 11, 2026. (Motion, Kim Decl., Exh. 4.) On the same day, defense counsel emailed back that further responses would be provided by May 22, 2026. (Ibid.) Upon receiving no supplemental response, Plaintiff’s counsel filed the instant Motion. (Id. at ¶¶6, 8.) Although the Court agrees with the opposition that this was marginal meet and confer effort, it finds the effort sufficient for this motion. Plaintiff extended the time for Defendant to serve initial responses, and Defendant agreed that supplemental responses were warranted. To date, despite the filing of this Motion, no supplemental responses have been served upon Plaintiff. (Reply, Kim Decl., ¶¶3-7 and Exh. 1.)

Based on Plaintiff’s compliance with the

procedural requirements and Defendant’s own concession that further responses were ready and would be provided, the Court finds Plaintiff is entitled to an order compelling further responses and an award of sanctions pursuant to Code

of Civil Procedure section 2031.310, subdivision (h). Sanctions are awarded in the amount of \$1,755.00 in fees based on three hours of attorney time billed at \$585.00 per hour, plus \$79.76 in costs, for a total of \$1,834.76. (Motion, Kim Decl., ¶¶12-13.)

Conclusion

Plaintiff Specialist Roofing and Repair, LLC's Motion for Order Compelling Further Responses to Requests for Production of Documents, Set One; and Request for Monetary Sanctions, is granted. Defendant Zackary Georgian is to serve supplemental responses within 20 days of this order. Also, within 20 days of this order, Defendant Zackary Georgian and counsel of record, Paul S. Marks, Esq., are jointly and severally ordered to pay sanctions of \$1,834.76 to Plaintiff's counsel.

Moving party to give notice.